

FROM Robert Samuel White
TO MILES Cameron D * GOV
DATE September 22, 2026, 5:31 PM PT
SUBJECT **Re: Public records request under ORS 192.311 to 192.478**

I will pay it. Send the instructions.

From: MILES Cameron D * GOV <cameron.d.miles@oregon.gov>
Sent: Tuesday, 22 September 2026 17:29:47
To: Robert Samuel White <rsw@rswfire.com>
Subject: RE: Public records request under ORS 192.311 to 192.478

We estimate the cost to collect, review, and produce the records to be \$572.50.

Fee Waiver Request Legal Standards

In reviewing a public records request fee waiver, we follow DAS Policy 107-001-030, the Attorney General's Public Records and Meetings Manual, and Oregon's public records law. DAS Policy 107-001-030 provides the following guidance:

- To adequately balance the State's obligation to be transparent and accessible with the obligation to prudently safeguard public funds and resources, fee-waivers and -reductions should be granted when the statutory standard has been met – when disclosure will primarily benefit the general public.
- A request to waive or reduce fees related to a public records request, that requires substantial agency resources to complete, may be denied if the interest of the general public would be better served by preserving agency resources.
- The public interest is not a fixed concept and the balance of public interest may change over time. It may shift as information becomes older or in the light of issues of the day. The circumstances at the time of the request will be considered.
- A genuine public interest in the subject matter of a request is required as the basis for granting a waiver. The public interest is not necessarily the same as what interests the public. The fact that a topic has been discussed in the media does not automatically mean that there is a public interest in disclosing the information that has been requested about it.

ORS 192.324 (5) allows the custodian of a public record to waive or reduce the fee associated with a public records request if disclosure of the record at issue "... primarily benefits the general public." Waiving or reducing fees is in the public interest "when the furnishing of the record has utility - indeed, its greatest utility - to the community or society as a whole." In *Def. of Animals v. Or. Health Sciences Univ.*, 199 Or App 160, 189 (2005). The custodian of the record may deny a request for a full or partial fee waiver even if disclosure would primarily benefit the public, provided that the denial is reasonable under the totality of the circumstances. *Id.* at 189-90.

Waiving or reducing fees in the public interest is distinct from situations where disclosure would primarily affect a concern or interest of a private individual. *Id.* at 188. Relevant factors to consider when determining whether a requester has established a sufficient public interest include: (1) the requester's identity, (2) the purpose for which the requester intends to use the information, (3) the character of the information, (4) whether the requested information is already in the public domain, and (5) whether the requester can demonstrate the ability to disseminate the information to the public. See State of Oregon, Department of Justice, Atty. Gen. Public Records and Meetings Manual, 19-20 (2024).

Fee Waiver Request Analysis

Applying the relevant factors helps us determine whether the PRR is in the public interest. The requester has demonstrated that this request relates to a personal, rather than a public interest. Therefore, this factor does not weigh in favor of granting a fee waiver.

The second factor is the purpose for which the requester intends to use the information. The requester has not demonstrated that this factor weighs in favor of granting a fee waiver as the use of records for a personal issue does not weigh in favor of the request being in the public interest.

The third factor is the character of the information. The requester has not demonstrated that this factor weighs in favor of granting a fee waiver as the fee waiver request form does not explain how the release of records is in the public interest other than by stating a general interest in transparency.

The fourth factor is whether the requested information is already in the public domain. The requester has not demonstrated that this factor weighs in favor of granting a fee waiver.

The final factor is whether the requester can demonstrate the ability to disseminate the information to the public. The requester has not demonstrated the ability to disseminate the public records but merely stated that he can post it on a website.

Finally, in evaluating a public records request fee waiver the public body must consider whether, under the totality of the circumstances, a fee waiver is also in the public interest. When weighing the public interest in disclosure versus the public interest in preserving public funds, when none of the prescribed factors weigh in favor of the grant of a fee waiver, the grant of a fee waiver is not warranted.

Consequently, your request for a fee waiver is denied.

Fee Payment

I will wait to hear from you prior to proceeding with the collection and review of these records. If you decide to pay the \$572.50, we will send you instructions on submitting payment. Let me know if you have any questions. If you would like to narrow your request (for example by using a shorter date range, by searching only particular employee records, or by adding search terms), I would be happy to work with you.

Thanks,

Cameron D. Miles (he/him)
Government Accountability Attorney
Office of Governor Tina Kotek

From: Robert Samuel White <rsw@rswfire.com>
Sent: Saturday, September 5, 2026 2:20 PM
To: MILES Cameron D * GOV <cameron.d.miles@oregon.gov>
Cc: Governor Kotek * GOV <governor.kotek@oregon.gov>; [Kotek Campaign Chair]
Subject: Public records request under ORS 192.311 to 192.478

This is a request under the Oregon Public Records Law.

I am Robert Samuel White, date of birth April 11, 1977. I served as an unpaid volunteer with the Oregon Parks and Recreation Department at Jessie M. Honeyman Memorial State Park. I was dismissed on March 24, 2025. The letter permanently excluding me from all OPRD volunteer programs, citing my public comments about staff, is dated March 26, 2025. The Department's own report to Oregon State Police states that I was "dismissed from volunteering with OPRD on 3/25/25 and flagged as ineligible for future service" — a date one day earlier than the written notice I received, and a determination for which I was never given notice at all. I have written to the Office of the Governor concerning that matter beginning November 18, 2025, and have been a party to or subject of correspondence with that office on dozens of occasions.

On September 3, 2026, Oregon State Police produced its file on me under PR27478. That production shows that on March 3, 2026 an OPRD Emergency Manager notified Oregon State Police about me, and gave as the stated reason that I was "now including the Governor as well as our Director." That email alleged no crime, described no threat, and quoted no statement of mine. A threat assessment was ordered the following morning by the captain of OSP Government and Media Relations. On March 24, 2026, one year to the day of that retaliatory dismissal, two OSP detectives and a federal officer came to my residence.

Unless otherwise noted, the period requested is February 1, 2025 to the present.

I request the following.

1. All records concerning me held by the Office of the Governor in any division or function, including records indexed under Robert White, Robert Samuel White, Robert S. White, Sam White, rsw@rswfire.com, oprdvolunteerabuse.org, rswfire.com, or my date of birth.

2. All records reflecting the receipt, routing, logging, assignment, review, or disposition of correspondence I sent to the Office of the Governor. This includes constituent services tracking system entries, case or ticket records, routing notes, assignment records, internal forwarding, and any record of a decision not to respond.
3. Any summary, briefing note, memorandum, talking point, or other internal document prepared about me or about the matter described in my correspondence, and any record identifying who prepared it and for whom.
4. All communications between the Office of the Governor and the Oregon Parks and Recreation Department concerning me, including any communication with Director Lisa Sumption, Deputy Director J.R. Collier, or any OPRD employee.
5. All communications between the Office of the Governor and Oregon State Police concerning me, including any communication concerning the March 24, 2026 contact at my residence, OSP case SP26096984, or CAD event SP26097765.
6. All communications between the Office of the Governor and the Oregon Department of Justice, the Department of Administrative Services, or any other state or federal agency concerning me.
7. Any record reflecting that the Governor was personally informed of this matter, in any form, on any date, and any record reflecting a direction, instruction, or decision given by the Governor or her staff concerning it.
8. Any record of a meeting, call, or briefing at which this matter, my correspondence, or I was discussed. This includes calendar entries, meeting invitations, agendas, notes taken during or after, and any record identifying who was present.
9. Any recurring or periodic briefing document produced for the Governor or her senior staff — daily or weekly issue summaries, constituent correspondence reports, agency issue reports, or equivalent — in which I, my correspondence, the Oregon Parks and Recreation Department's handling of it, or the archive at oprdivolunteerabuse.org appears.
10. All communications concerning me between any Office of the Governor employee and any person acting for the Kotek campaign, to the extent held on state systems or by state employees.
11. Any record described above held in a personal email account, personal device, or non-state messaging application by an Office of the Governor employee, where the record concerns state business regarding me.

12. Any record reflecting the disclosure of my personal information, including my date of birth, my residence, my correspondence, or my volunteer file, by the Office of the Governor to any person or agency.

13. All records concerning the archive at oprdvolunteerabuse.org, my public records requests, my notice of tort claim served September 3, 2026, DAS Risk Management claim P195403, or the legal fund I have opened in this matter.

Administration

Fee waiver. I request a waiver under ORS 192.324(5). Disclosure primarily benefits the general public. These records concern whether correspondence from a citizen to his Governor was the stated basis for a state police threat assessment, and an intimidating "knock and talk" behind a locked gate on restricted federal land, and how that correspondence was handled by the office that received it. I have no commercial purpose. All records produced will be published in full, at no charge, at oprdvolunteerabuse.org.

Acknowledgment and timeline. ORS 192.324(2) requires acknowledgment or completion within five business days, and ORS 192.329(5) requires a reasonable estimated completion date where a response cannot be completed within fifteen business days. I request both in writing.

Fees. ORS 192.324(4) prohibits a fee exceeding \$25 without prior written notice. If a fee is to be charged, I request that notice with an itemized basis before any work is performed, and the opportunity to narrow the request rather than have it held pending payment.

Format. Electronic delivery by email or secure link. I am specifying format at the time of this request, as your office's published policy requires: I request records in their native format with links, metadata, and attachments preserved and intact — not converted to PDF. Email should be produced in a format that retains full headers, recipients, timestamps, and attachments. I have no ability to receive or return printed forms.

Preservation. Please treat all records responsive to this request as subject to litigation hold. I have served a notice of tort claim on the State of Oregon under ORS 30.275 concerning the conduct described above, and DAS Risk Management has opened claim P195403.

Disposition. For each numbered item, please state whether responsive records exist, produce them, or cite the specific exemption claimed for each record or portion withheld, as ORS 192.329(2) requires. If the Office is not the custodian of a category, please identify the custodian rather than closing the request as to that category. ORS 192.311(2)(b).

Robert Samuel White
oprdrvoluteerabuse.org